STANDARD OPERATING PROCEDURE	CS-3400

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON SHERIFF**	DATE ISSUED 01/24/08	DATE REVISED **07/22/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE COURT SERVICES	RESOURCES
SUBJECT COURTHOUSE SECURITY	CROSS REFERENCE CS-3500 COURTHOUSE EMERGENCY PLANS CALEA 73.1.1, 73.3.21, 73.5.12, 73.5.18 NEBRASKA § 23-1705.

I. Purpose:

The purpose of this policy is to establish guidelines for courthouse security. The Sarpy County Sheriff's Office authority for Court Security is derived from Nebraska State Statute § 23-1705.

II. Policy:

The Sarpy County Sheriff's Office is responsible for the safety and security of the Sarpy County Courthouse Complex and 1102 Building. It is the policy of the Sarpy County Sheriff's Office to utilize sworn deputies and non-sworn entry security officers (ESOs) to protect the integrity of court procedures, deter those who would take violent action against the court or participates in court procedures, sustain the rights of individuals before the court, and sustain the decorum of the court. To ensure the safety and security of the courthouse, entry and exit doors and doors accessing vital areas shall be controlled. Unauthorized persons shall not be allowed to enter or exit controlled doors.

III. Procedure:

A. Door Control: The safety and security of the courthouse is dependent upon controlling ingress, egress, and movement through the Courthouse Complex and specifically, the Hall of Justice. Specific doors shall be secured and, if necessary, personnel shall be posted to ensure security.

1. Access Cards: Computerized access cards shall be issued by the Court Security and Transportation Unit. Only the Court Security and Transportation Unit Supervisor or his or her designee may issue or modify access cards.

a) Requests for access cards or for modifications to access cards shall be made to the Court Security and Transportation Unit Supervisor.

The Court Security and Transportation Unit Supervisor shall determine the need for the county employee to access the requested areas and either issue/modify the card(s) or advise the individual that he or she is not authorized access to that door or area.

b) If questions arise regarding the Court Security and Transportation Unit Supervisor's decision, the Court Services Commander shall be consulted and shall make the final decision.

c) Access privileges shall be reviewed on an annual basis by the Court Security and Transportation Unit Supervisor or his or her designee to ensure proper area access and limitations.

2. **Temporary Access:** Designated persons may be assigned a temporary access card by the Court Security and Transportation Unit Supervisor or his or her designee. Temporary access cards shall allow access to controlled doors and areas as required.

3. **Early/Late Access:** Those Courthouse employees requiring early or late access to the Hall of Justice shall be designated as such by their department heads. The Court Security and Transportation Unit shall maintain a list of designated personnel and access cards and shall review the list monthly.

4. **Tower Door:** The tower door shall be secured allowing entrance and exit only to County and State Employees who have been issued an identification badge and keycard. During jury trials, juries may be allowed to enter and exit the tower door when accompanied by a bailiff.

B. **Security Check:** Each morning, Court Security and Transportation Unit personnel shall complete a security check of all courtrooms and areas accessible to the public. Periodic security checks shall also be conducted of public areas during normal business hours.

C. **Main & Administrative Entrance Security Procedures:** All persons entering the Sarpy County Hall of Justice, including elected officials, court personnel, attorneys, and the public, shall do so at the West and Administrative entrance(s). The Security Screening Area(s) shall be open from 0700 hours to 1700 hours, Monday through Friday, excluding holidays. Only previously authorized personnel may enter the Hall of Justice at any other entrance.

1. **Identification:** To assist in identification of access-authorized persons, the Court Security and Transportation Unit may issue photo identification cards to courthouse employees and other frequent users of the court facilities.

2. **Weapons:** Weapons shall include but shall not be limited to, firearms, knives, cutting instruments, chemical agents (i.e., Mace), stun guns, etc.

   a) No weapons shall be permitted in the Hall of Justice except:

   (1) Those lawfully carried by Court Security and Transportation Unit deputies.

   (2) Those lawfully carried by UNIFORMED law enforcement officers acting within the scope of their employment.

   (a) Armed, uniformed law enforcement officers must sign in with the Entry Security Officers at the West security checkpoint upon arrival. Armed, uniformed law enforcement officers shall be identifiable to the front and rear of their uniform.

   (b) Armed law enforcement officers not in uniform shall be directed to secure their weapons in the provided lockers prior to access to the court room areas.

   b) Civilians shall not be allowed to possess any knifes and/or item of contraband (i.e., scissors, handcuff key, mace, forks, corkscrew, etc.) within the courthouse complex. Any civilian found to have a legal knife and/or item on contraband, shall be asked to return it to his or her vehicle or the item will be confiscated and placed into property. If the ESO has any concern regarding the legality of the knife or item of contraband, he or she shall request a deputy respond to take appropriate action.

   c) Sarpy County Civilian Corrections Officer (CO's) Security Screening Procedure:

   (1) Sarpy County COs in uniform entering the courthouse at the west entrance shall be allowed to by-pass the security screening station/metal detector. COs shall be required to sign in with the Entry Security Officer (ESO) at the security screening station upon arrival.

   (2) Sarpy County CO's not in uniform entering the courthouse at the west entrance shall be required to enter through the security screening station/metal detector. CO's not in uniform shall not be required to sign in with the Entry Security Officer (ESO).

3. **Security Screening:** All persons entering the Hall of Justice shall be subject to security screening. With the assistance of court services deputies, entry security officers shall be primarily responsible for the screening process. Any person refusing to submit to screening or search shall not be allowed access to the Hall of Justice.

   a) **Daily Procedures:** On-duty ESOs shall be responsible for the following daily procedures prior to allowing entry of any persons to the Hall of Justice:

      (1) The metal detector(s) located at the West (Hall of Justice) and administrative entrances shall be inspected for signs of damage or tampering. The units shall turned-on and tested for proper operation.

      (2) The x-ray machine(s) shall be visually inspected for signs of damage or tampering. The unit shall be turned-on, allowed to warm up, and then tested for proper operation.

      (3) Hand-held metal detectors shall also be tested for proper operation.

   b) **Screening Procedures:**

      (1) Prior to passing through the magnetometer:

         (a) Each person shall be instructed to empty his or her pockets into the plastic tub.

         (b) All personal items (e.g., purses, briefcases, packages, etc.) shall be placed flat on the x-ray conveyor belt.

         (c) No personal items of any kind shall be allowed past the entrance area until it has been screened.

         (d) Objects that are too large for x-ray screening shall be hand-screened by an ESO or deputy.

      (2) The person shall be directed to remove his or her hands from their pockets and walk through the magnetometer at a slow pace.

      (3) All non-contraband items shall be returned to each person after clearing the magnetometer.

c) **Magnetometer Alarms:** Alarms shall be indicated by an audible tone and/or illumination of the warning lights on the magnetometer.

(1) If an alarm is activated when a person walks through the machine, the individual shall be directed to remove any other metal objects that may have been overlooked. If the alarm activates in the area of the individual's shoes/boots; he or she shall be asked to remove them. The shoes/boots will be passed through the x-ray machine and the individual's legs shall be scanned with a hand-held wand or the individual may be asked to go back through the magnetometer.

(2) If an alarm is activated after the second pass, the individual shall be scanned by a hand-held metal detector.

(3) Persons with a medical prosthesis should have documentation from a physician.

(4) If an ESO believes there may be additional concern that an individual possesses a weapon, he or she shall request a deputy conduct a pat search of the individual.

(5) If the hand-held scanner alarm activates; the ESO shall pat search the area in question.

d) **Suspicious Items:**

(1) If the x-ray machine operator observes any suspicious item on the monitor, the x-ray screening shall be repeated. All functions of the machine should be used to assist in identifying the item.

(2) In the event an object cannot be identified, or is determined to be a weapon or contraband, the item shall be left inside the x-ray machine and a deputy shall be requested to examine the object and take appropriate action.

(a) If there is any indication that the item may be an explosive device, the Court Security and Transportation Supervisor shall be notified immediately; portable radios shall not be used to summon assistance.

(b) The object shall be left inside the x-ray machine and shall not be removed without the permission of the Court Security and Transportation Supervisor.

(c) Bomb threat procedures shall be followed (see CS-3500 Court House Emergency Plans).

(3) The ESO shall advise responding deputies of the identity of the individual presenting the suspicious item.

e) Suspicious/Disorderly Persons:

(1) If an ESO encounters an individual who is suspicious, has or appears to have a weapon or contraband or refuses to comply with screening procedures, he or she shall immediately contact a deputy.

(2) ESOs shall not attempt to physically detain any individual and shall only use force to defend themselves or others from an immediate threat of assault or injury.

(3) ESOs shall not make or attempt to make an arrest for any violation.

(4) When requested, deputies shall respond immediately.

(a) All appropriate steps shall be taken to deny entry into the Hall of Justice, beyond the east and west security screening checkpoints within the courthouse, when a weapon is observed/present.

(b) If a party or parties insist on entering the Hall of Justice beyond the security screening checkpoints, with a weapon claiming for example, 2nd amendment rights, deputies shall deny entry.

(c) If the armed party or parties attempts to use threats and/or intimidation to gain entry, deputies may take the party or parties into custody and charge accordingly (e.g., Terroristic Threats, Obstructing Government Operations, Obstructing a Peace Officer, etc.).

(d) If there is no violence or threats of violence but the armed party or parties refuse to leave, the party may be taken into custody and charged accordingly (e.g., disturbing the peace).

f) 1102 Building:

(1) Responsible for the safety of employees and public.

(2) Respond to call for service/emergencies.

(3) Monitor security cameras and pedestrian traffic within the building.

D. **Court Holding Cells**: Court holding cells are located adjacent to the Court Security Office and are considered separate entities.

1. Firearms are not permitted in any court holding cell which is occupied by an unrestrained inmate. Firearms shall be secured in storage room lockboxes or locked in personal lockers before the deputy enters the holding cell, except in emergency situations. Emergency situations include, but are not limited to:

a) Intervening in an altercation or disturbance to prevent injury or death to a deputy or to an inmate.

b) Fire.

c) Medical emergency in which death or serious bodily injury is possible.

2. Deputies shall have their handguns secured in a level 3 or higher holster, while in the Court Security Office.

3. A deputy shall always remain in the Court Security Office when there is an inmate housed in a holding cell.

E. **Reporting:** All incidents which threaten the Courthouse facility, or any person therein shall be immediately reported to the deputy's respective Court Security and Transportation Sergeant and shall be documented in a report for necessary action.

1. A documented report of all incidents threatening the facility or persons therein shall be provided to the Sheriff.

2. Outside agencies shall be notified of threats as appropriate.